



PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-48 / Cox Ranch – Future Land Use Map Amendment
Date: April 27, 2026

Background:

The item for consideration is a Future Land Use Map Amendment (or Comprehensive Plan Amendment). This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral April 27, 2026
- Public Services Committee May 4, 2026
- Final Consideration May 11, 2026

Planning Commission Recommendation:

The Planning Commission heard this item at their April 6, 2026, meeting and voted to approve the amendment.

The Planning Commission Staff report is attached and unchanged.

Public Comment

As of the creation of this memo (April 22, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 526 views and 15 comments. Many of the comments are about annexation and not specifically the amendment.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AMENDING THE FUTURE LAND USE MAP OF PLANCHEYENNE CHANGING THE LAND USE DESIGNATION FROM URBAN TRANSITION RESIDENTIAL TO MIXED-USE EMPLOYMENT FOR PROPERTY GENERALLY LOCATED WEST OF ROUNDTOP ROAD AND ADJACENT TO HAPPY JACK ROAD AND AMENDING THE URBAN SERVICE BOUNDARY."

WHEREAS, *PlanCheyenne*, as amended by *PlanCheyenne: Reflections and Progress* adopted by the Governing Body of the City of Cheyenne by Resolution No. 5573, is the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County adopted by both the Governing Body of the City of Cheyenne and Laramie County Board of County Commissioners;

WHEREAS, the intent of the Future Land Use plan is not to predetermine specific land uses for individual parcels or specific locations for uses or facilities, but to provide a general framework for neighborhoods and activity centers organized around roadway networks and major parks and open space;

WHEREAS, Brad Emmons of AVI, PC, a resident within Cheyenne, has initiated an amendment to the Future Land Use map to amend the Urban Service Boundary shown in Exhibit A which is attached hereto and incorporated herein and to amend the land use category from Urban Transition Residential to Mixed-use Employment for land legally described as:

A Parcel Of Land Located In Township 14 North, Range 67 West Of The 6th P.M., Laramie County, Wyoming, Being More Particularly Described As Follows:

All Of Section 31 Lying North Of The Northerly Right Of Way Of Happy Jack Road (State Highway 210) And East Of The Access Easement Granting Ingress And Egress To The Lands North In Section 30, And Also Lying Southerly From A Barbed Wire Fence That Runs North Of North 1/16th Line Of Section 31 Terminating At The East 1/16th Line, Then Including The Northeast 1/4 Of The Northeast 1/4 Of Said Section 31 And Going Southerly To The Northerly Right Of Way Of Happy Jack Road (State Highway 210) Plus, The East 1/2 Of The Southeast 1/4 Of Section 30, Township 14 North, Range 67 West Of The 6th P.M., Laramie County, Wyoming;

Plus, The West 1/2 Of Section 29, Township 14 North, Range 67 West Of The 6th P.M, Laramie County, Wyoming;

Plus, All Of Section 32, Except The East 1/2 Of The Northeast 1/4 And The East 1/2 Of The Southeast 1/4, Township 14, North Range 67 West Of The 6th P.M., Laramie County, Wyoming.

WHEREAS, Plan Amendments approved by the Governing Body pursuant to the criteria set forth on Page 18 of *PlanCheyenne*, as amended;

WHEREAS, the Laramie County Board of County Commissioners reviewed the proposed future land use map amendment and were given the opportunity to make comments;

WHEREAS, a public hearing to receive public input and comments on the proposed Future Land Use map amendment for the above-described property was held before the City of Cheyenne Planning Commission on April 6, 2026, and the Commission approved the proposed Future Land Use map amendment; and

WHEREAS, Plan Amendment processes and procedures required by *PlanCheyenne*, as amended, have been followed with regard to the request by Brad Emmons to amend the Future Land Use map category for the above-described property and amend the Urban Service Boundary and Natural and Cultural Resources Area.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne Governing Body hereby amends the Land Use Plan for *PlanCheyenne* changing the land use category from Urban Transition Residential to Mixed-use Employment, and amends the Urban Service Boundary, as shown in Exhibit A, in accordance with the procedures outlined in *PlanCheyenne* and Wyoming Statutes § 15-1-503 and § 15-1-505; and

BE IT FURTHER RESOLVED, that staff is authorized to amend affected maps of *PlanCheyenne* to reflect the aforementioned changes;

PRESENTED, READ AND ADOPTED this _____ day of _____, 2026.

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK



FOR
COX LANDS

SITUATED IN A PORTIONS OF SECTIONS 29, 30, 31 AND 32
TOWNSHIP 14 NORTH, RANGE 67 WEST AND A PORTION OF
SECTION 5, TOWNSHIP 13 NORTH RANGE 67 WEST OF THE
SIXTH PRINCIPAL MERIDIAN
COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED FEBRUARY 2026

307.837.5917	
1101 OLD TOWN LANE, SUITE 101	
CHICAGO, IL 60605	
AV@BAYPC.COM	
DATE:	Mar 13, 2008
DRAWN BY:	CRJ
DESIGNED BY:	
CHECKED BY:	AED
JOB NO:	5077
DRAWING NO.	1 OF 1



COX LANDS

PREPARED FOR:

NO.	REVISION
-----	----------

DATE

CITY OF CHEYENNE

PLANNING & DEVELOPMENT

CITY OF CHEYENNE PLANNING COMMISSION

APRIL 6, 2026

STAFF REPORT

FILE:

PUDC-26-48: Future Land Use Plan Amendment adding land to the Urban Service Boundary, designating that land Mixed-use Employment and, changing land adjacent to that addition from Urban Transition Residential to Mixed-use Employment

REQUEST:

A request to amend the Future Land Use Plan, adding land to the Urban Service Boundary, designating that land Mixed-use Employment, and changing land adjacent to that addition from Urban Transition Residential to Mixed-use Employment.

LOCATION:

North of and adjacent to Happy Jack Road, west of Roundtop Road.

APPLICANT:

Brad Emmons, AVI P.C.

OWNER:

Cox, William S Revocable Trust

ZONING:

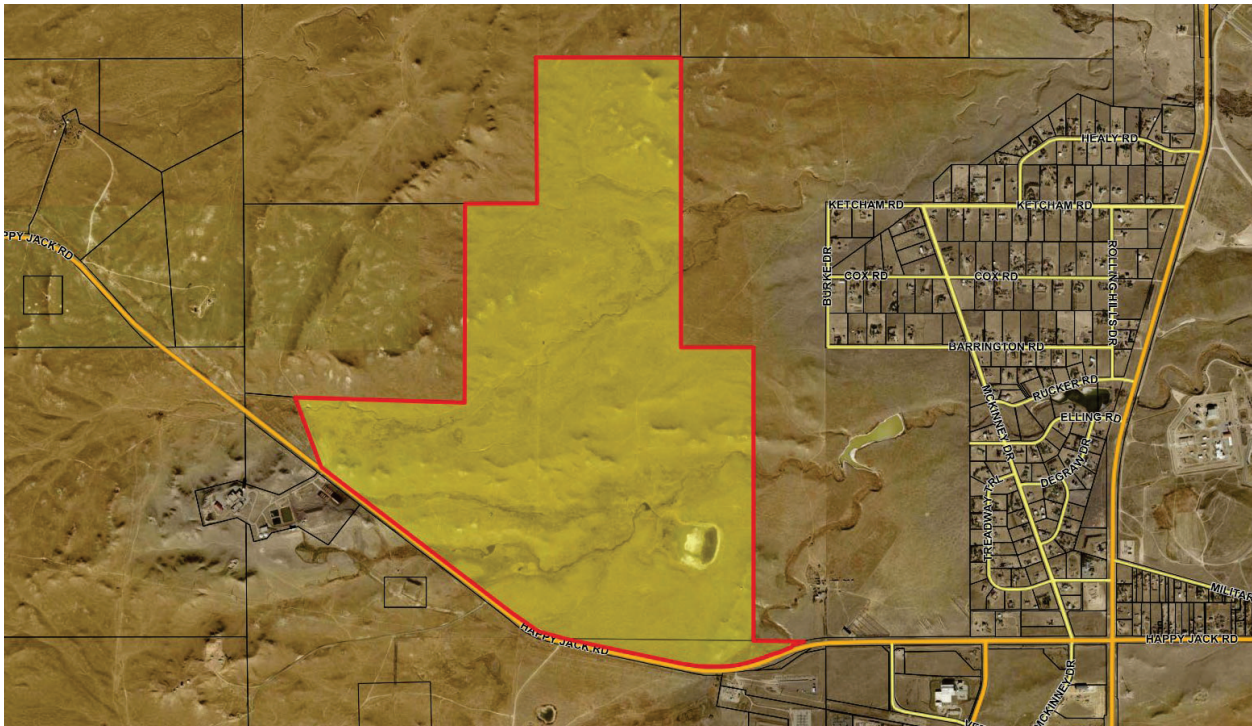
County LU, proposed rezoning to BP – Business Park following annexation.

PURPOSE:

To match a requested zone change to BP Business Park for development of the property.

PREPARED BY:

Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the Resolution amending the Future Land Use Plan for 1,193.4 acres of land west of Roundtop Road and north of Happy Jack Road as shown in the Future Land Use Map provided, adding land to the Urban Service Boundary, designating that land Mixed-use Employment, and changing land adjacent to that addition from Urban Transition Residential to Mixed-use Employment.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne (2014 Community Plan)

BACKGROUND:

The applicant is requesting amending the Future Land Use Map for roughly 1,193.4 acres of land to Mixed-use Employment to accommodate a zone change to the BP – Business Park zone.

Part of this property is outside the Urban Services Boundary and has no Future Land Use Map designation. This area is proposed to be added to the Urban Services Boundary and designated Mixed-use Employment.

The portion of the property currently within the Urban Service Boundary is shown as Urban Transition Residential in the Future Land Use Plan. The Urban Transition Residential category, along with the Rural Residential category, provides a gradual transition from the urbanized areas of the Cheyenne Area to the rural areas on the periphery. It includes existing homes and neighborhoods, as well as some planned and recent new growth areas.

A concurrent application for a zoning map amendment has been submitted. The zoning map amendment will accompany the future land use amendment at City Council. If the application for the zoning map amendment is approved, the applicant will be required to submit a site plan application for any new development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Transitional Residential / No Designation	County LU – Land Use	Vacant
North	Agricultural/Rural / No Designation	County LU – Land Use	Vacant / Agriculture
South	Mixed-use Employment / No Designation	County LU – Land Use and City LI Light Industrial	Vacant / Agriculture / Industrial / Water Treatment Facility
East	Urban Transitional Residential	County LU – Land Use	Agriculture / Single-family Residential
West	No Designation	County LU – Land Use	Vacant / Agriculture

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve an amendment to the Future Land Use Map of the Comprehensive Plan, the Commission must make the following considerations outlined in the 2014 Community Plan (page 18). A detailed analysis is below:

1) BENEFICIAL OR ADDRESSES ISSUES - The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process.

The proposed amendment to Mixed-use Employment at the proposed location would be beneficial as it is on the very edge of the community. Mixed-use Employment areas should be located toward the fringe of the community and in areas that are not highly residential as they allow for more industrial and business park type developments. This area is mostly agricultural in use at this time and is at the edge of the urban service boundary. The nearest residential subdivision is a rural-residential style development a half-mile to the east.

The proposed Future Land Use amendment **complies** with review criteria 1.

2) COMPATIBLY - The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan.

The subject property is adjacent to Mixed-use Employment to south, no designation to the west, Agricultural/Rural to the north and Urban Transition Residential to the east. The Urban Transition Residential would not allow for commercial or industrial type uses. Higher intensity employment is encouraged in the core of Mixed-Use Employment Campus areas, or adjacent to collector or arterial roadways. The proposed amendment is consistent with the goals and policies of PlanCheyenne, as discussed in more detail below.

The proposed Future Land Use amendment **complies** with review criteria 2.

3) IMPACT MITIGATION - The proposed amendment will address and mitigate impacts on transportation, services, and facilities.

Transportation:

The transportation network in this area of the City is somewhat developed with a major street to the south. All impacts to the transportation network will be addressed through the platting and site plan processes. Additional rights-of-way could be required depending on the development pattern proposed for the property.

Services:

The proposed change will not have any adverse effects on the provision of services to the subject property. Service providers, such as the fire department, will be included in platting and site planning processes to assess service needs.

Facilities:

The proposed change will likely require sewer to be extended to the development area.

The proposed Future Land Use amendment **complies** with review criteria 3.

4) SERVICE PROVISION - The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned service provision

This land is currently proposed to be annexed into City limits and urban facilities and services are available to the subject property. Sewer would need to be extended from the south.

The proposed Future Land Use amendment **complies** with review criteria 4.

5) ANNEXATION - The proposed amendment does not jeopardize the City's ability to annex the property.

The subject property is currently proposed to be annexed into City limits.

The proposed Future Land Use amendment **complies** with review criteria 5.

6) URBAN SERVICES AREA - The proposed amendment is consistent with the logical expansion of the Urban Services Area.

This land is about 70% within the Urban Services Area. The Urban Service Boundary in this area is a straight north-south line that does not follow topography or current parcel boundaries. This future land use amendment would extend the Urban Service Area to match the platted boundary of the land.

The proposed Future Land Use amendment **complies** with review criteria 6.

7) STRICT ADHERENCE - Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan.

Strict adherence to the Plan may result in unintended consequences. While the land could develop with residential, it is on the edge of the community where the higher level of services typically expected with urban residential development could be challenging to expand. Alternatively, the area could develop with large-acre ranchette-style development in the County; however, such development is not optimal for areas within the Urban Service Boundary.

The current Urban Service Boundary in this area appears to have been created by reaching the edge of the 2014 'Planning Boundary'. Everywhere else, the Urban Service Boundary follows topography or parcel boundaries. Strict adherence to the current Urban Service Boundary in this area of the community may be unfairly limiting to land otherwise developable.

The proposed Future Land Use amendment **complies** with review criteria 7.

8) PUBLIC WELFARE AND CONSISTENCY – The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.

Staff is satisfied that the proposed application will not have any adverse effects on public welfare. Furthermore, the application accomplishes the following policies contained within PlanCheyenne:

- **Policy 1.1.B: Flexibility to Respond to Market Demands**

The Future Land Use Plan does not predetermine all land uses on individual parcels and is intended to provide some flexibility for the market to help determine which uses are needed at a given time. However, when evaluating land uses for a proposed development, consider whether a diverse and integrated mix of uses is provided throughout the entire Cheyenne urbanized area.

- **Policy 3.1.B: Recruit New Employers**

Work with partners, such as the Chamber and LEADS, to continue to recruit larger employers that provide family wage jobs and that are predominantly clean, nonpolluting industries.

- **Policy 3.5.A: Locations for Heavy Industrial Uses**

Continue to leverage the Cheyenne Area's unique location and physical assets, such as heavy rail and interstate access, by designating and maintaining areas for heavy industrial uses that may not be suitable within designated activity centers due to design and/or traffic impacts. Such uses may include trucking and distribution facilities, oil and gas support services, and warehousing among others.

The proposed Future Land Use amendment **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

No other plans are applicable for this area.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on March 21, 2026.
- **Posted Notice** Evidence of posted notice was provided showing that the signs were posted on March 30, 2026.
- **Internet Posting** on connect.cheyennecity.org on February 16, 2026.

As of the publication of the Staff Report (March 30, 2026), Staff has received no inquiries. There have been 14 comments made on Connect Cheyenne. Many of the comments are from people who have the misimpression that they are being annexed by the City. Other comments are generic and state they do not agree with this project. The project page on the website has received 292 views.

CONCLUSION:

Staff recommends approval of the extension of the Urban Service Boundary and the Mixed-use Employment Land Use designation for this property because it is located on the edge of the community and is more than a half mile from any residential neighborhoods. A future land use

amendment to Mixed-use Employment will support the applicants proposed zoning map amendment and allow for further development.

ALTERNATIVES:

1. Approve the Resolution amending the Land Use Plan as submitted by the applicant and expanded upon by staff (**Staff Recommendation**).
2. Approve the Resolution amending the Land Use Plan subject to modifications.
3. Deny the Resolution to not amend the Land Use Plan. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Resolution until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

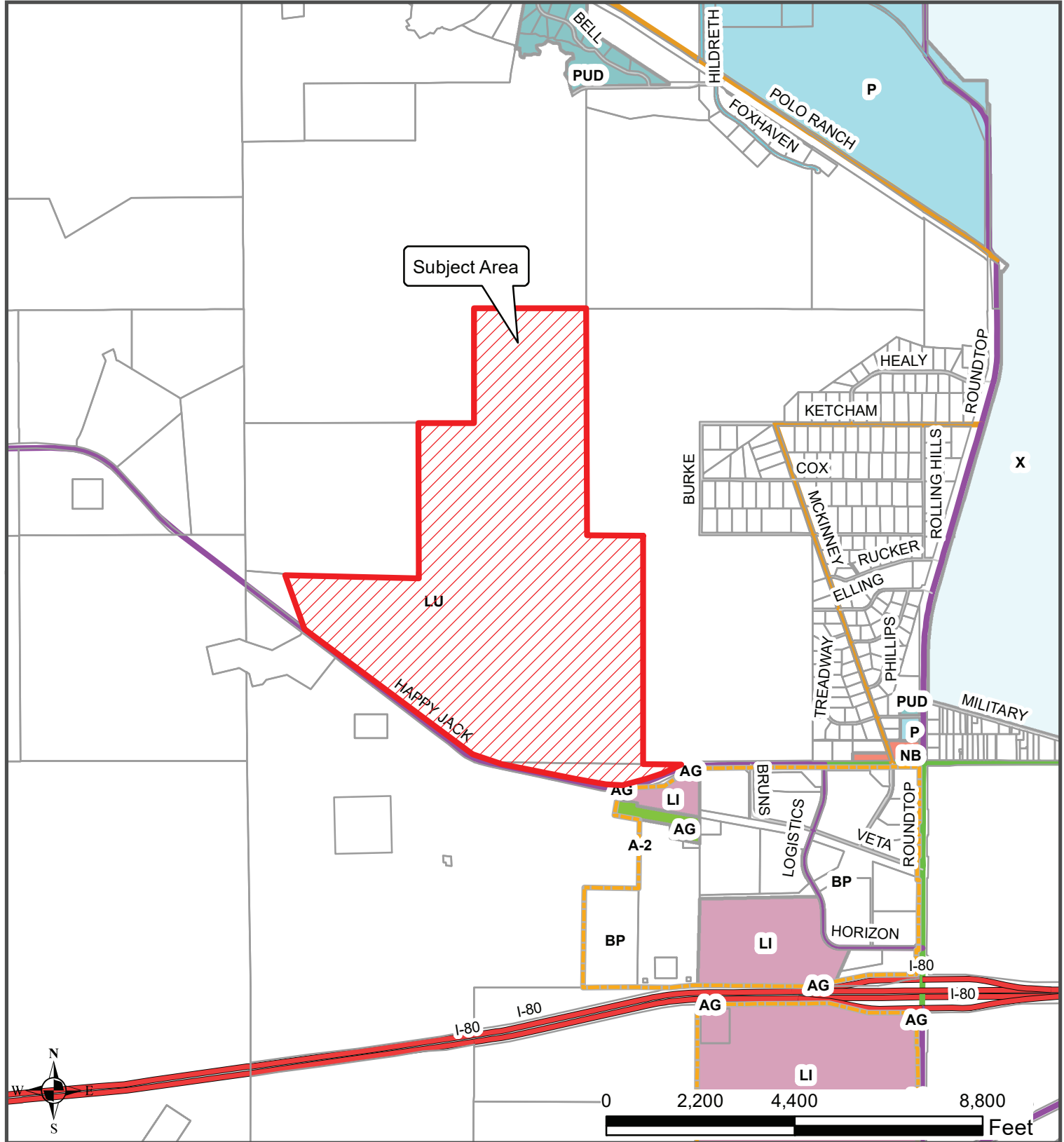
In the event that the Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the Resolution amending the Land Use Plan for 1,193.4 acres of land west of Roundtop Road and north of Happy Jack Road as shown in the applicant's submitted Future Land Use map, adding land to the Urban Service Boundary, designating that land Mixed-use Employment, and changing land adjacent to that addition from Urban Transition Residential to Mixed-use Employment.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Application
4. Applicants Future Land Use Map – Area to be amended.

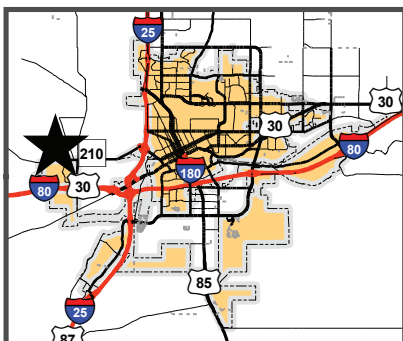


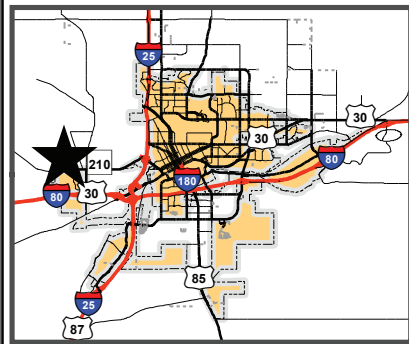
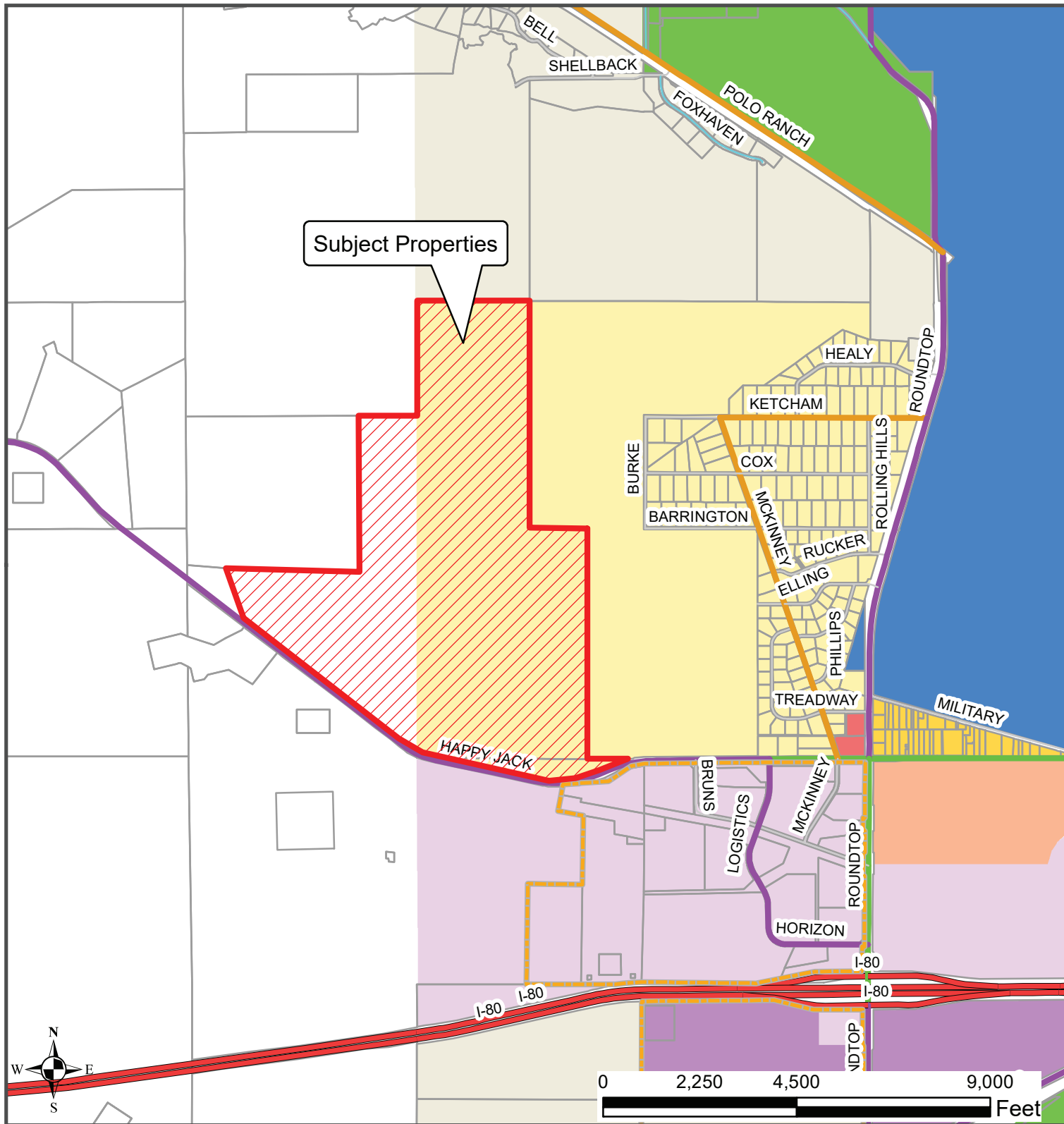
Attachment 1: Zoning Map PUDC-26-48

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt





Attachment 2: Land Use Map PUDC-26-48

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

**Record No: PUDC-
26-48**

Comprehensive Plan
Amendment

Status: Active

Submitted On: 3/3/2026

Primary Location

O HAPPY JACK RD
Cheyenne, WY 82009

Owner

COX, WILLIAM S REVOCABLE
TRUST
5811 PELICAN BAY BLVD STE
204 NAPLES, FL 341082710

Applicant

 AVI P.C.
 307-637-6017
 avi@avipc.com
 1103 Old Town Lane #101
Cheyenne, WY 82009

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* 

Cox Lands

Is this application proposing amending the Future
Land Use Map?*

Yes

Is this application proposing amending the text of
the Plan?*

No

Review Criteria

The following review criteria are found in PlanCheyenne regarding a Comprehensive Plan amendment. Please acknowledge the proposed amendment meets each review criterion by checking the box.

1. The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process.*



2. The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan.*



3. The proposed amendment will address and mitigate impacts on transportation, services, and facilities.*



4. The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned service provision.*



5. The proposed amendment does not jeopardize the City's ability to annex the property.*



6. The proposed amendment is consistent with the logical expansion of the Urban Services Area.*



7. Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan.*



8. The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.*



Certification

A resident of Cheyenne or the plan area of Laramie is required to submit an application for a comprehensive plan amendment.*

I represent a resident of Cheyenne (or the plan area of Laramie County).

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Bradley N. Emmons

Feb 27, 2026

Attachments

	Application Letter Application Letter.pdf Uploaded by Connor White on Mar 4, 2026 at 9:03 AM	
	Letter of Authorization cox loa_001.pdf Uploaded by AVI P.C. on Feb 27, 2026 at 8:40 AM	
	Peition to change the Comprehensive Plan 5077 Future Land Use Amendment.pdf Uploaded by AVI P.C. on Mar 3, 2026 at 8:25 AM	REQUIRED
	Proposed Comprehensive Plan Amendment Map 5077 FUTURE LAND USE AMENDMENT 3-13-26.pdf Uploaded by Connor White on Mar 13, 2026 at 10:54 AM	REQUIRED
	 2 Versions	

Charles Bloom
City of Cheyenne Planning and Development Director
2101 O'Neil Ave
Cheyenne, WY 82001

March 3, 2026
5077

RE: FUTURE LAND USE AMENDMENT OF LAND ON HAPPY JACK ROAD

Dear Mr. Bloom

Please accept this request to amend the Future Land Use Amendment for property currently under consideration for Annexation within the City of Cheyenne.

The property is currently a vacant parcel just west and south of 8802 Happy Jack Road. It is requested to be changed from rural residential to mixed use employment. With annexation of the property and the extension of water and sewer to the property rural residential would not be a logical designation. The request for mixed use employment is consistent with the properties to the south and east and the continued development of business parks to the west of the current City of Cheyenne boundaries.

The requested amendment is consistent with the broader vision of the City's Comprehensive Plan by encouraging orderly development and thoughtful land use planning. The area has seen growth in commercial development of the North Range Business Park which make the proposed designation appropriate.

If you have any questions or would like to discuss this project in greater detail, please contact me directly.

Respectfully Submitted
AVI PROFESSIONAL CORPORATION



Brad Emmons, AICP
1103 Old Town Lane | Cheyenne, Wyoming 82009 | 307.637.6017
2290 E Prospect Road Suite 5, Fort Collins, Colorado 80524 | 970.420.0086
avi@avipc.com | www.avipc.com
Cc: Swan Ranch Properties LLC, file

h:\5077_alta cox parcels\5077 future land use amendment.docx



FOR
COX LANDS

SITUATED IN A PORTIONS OF SECTIONS 29, 30, 31 AND 32
TOWNSHIP 14 NORTH, RANGE 67 WEST AND A PORTION OF
SECTION 5, TOWNSHIP 13 NORTH RANGE 67 WEST OF THE
SIXTH PRINCIPAL MERIDIAN
COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED FEBRUARY 2026

PROJECT:		COX LANDS		DRAWING TITLE:		AMENDMENT TO PLAN CHEYENNE FUTURE LAND USE MAP	
PREPARED FOR:				NO.			
REVISION							
DATE							